

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case Nos. 2015-643, 2015-698, 2015-942, 2015-3645, 2015-4691, & 2016-1240

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
STANFORD "SCOTT" SUTHERLAND, LICENSE NO. LPC 4879.

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners ("the Board") and Stanford "Scott" Sutherland ("Respondent") as follows:

1. Respondent is a licensed professional counselor ("LPC") within the State of Colorado, license number LPC 4879.
2. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
3. Respondent obtained his license to practice as an LPC on January 17, 2008.
4. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of case numbers 2015-3648, 2015-3621, and 2015-3886 without the necessity of holding a formal hearing.
5. This Order is a full and final resolution of case numbers 2015-643, 2015-698, 2015-942, 2015-3645, 2015-4691, and 2016-1240. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
6. Respondent understands that:
 - a. Respondent has the right to a formal disciplinary hearing pursuant to §§ 12-43-223 and 24-4-105, C.R.S.;
 - b. By entering into this Order, Respondent knowingly and voluntarily waives the right to a hearing, admits the facts contained in this Order, and relieves the Board of its burden of proving such facts;

- c. By entering into this Order, Respondent knowingly and voluntarily waives the right to present a defense by oral and documentary evidence, and to cross-examine witnesses who would testify on behalf of the Board; and,
- d. By entering into this Order, Respondent knowingly and voluntarily waives the right to seek judicial review of this Order

7. Respondent admits the following

- a. Respondent provides counseling services and psychological assessments through his business, Sutherland Counseling.
- b. Respondent also provides psychological evaluations for Chilhowee Psychological Services ("Chilhowee"). Chilhowee works with the National Service Animal Registry ("NSAR") to provide psychological services for those seeking to obtain certification for a pet as an emotional support animal ("ESA")
- c. Respondent diagnosed clients as having mental disorders based solely on an online questionnaire(s) and two telephone sessions conducted by staff of Sutherland Counseling. Respondent did not directly speak to or interview ESA clients
- d. Respondent provided clients with treatment recommendation letters prescribing ESAs based on his diagnosis process set forth in subsection (c).
- e. Respondent allowed individuals who were not licensed, certified, or registered pursuant to the Mental Health Practice Act, §§ 12-43-101 *et seq.*, C.R.S. ("MHPA"), to interpret online assessments and conduct telephonic consultations with clients.
- f. Respondent failed to supervise employees
- g. Respondent failed to establish relationships with clients
- h. Respondent failed to maintain patient records containing the required information as outlined in Board Rule 16
- i. Respondent failed to provide clients with mandatory disclosure of information.
- j. Respondent has acted in a manner that does not meet the generally accepted standards of the professional discipline under which he practices.

8. By virtue of the facts admitted in paragraph 7 above, Respondent admits, and the Board finds, that Respondent violated §§ 12-43-214 and 12-43-222(1)(b), (g)(1), (h), (n), (p), (t)(III), and (u), C.R.S.

ADMONITION

9. On the basis of the findings set forth in paragraphs 7 and 8 above, the Board hereby admonishes Respondent for violations of §§ 12-43-214 and 12-43-222(1)(b), (g)(1), (h), (n), (p), (t)(III), and (u), C.R.S. This Order is effective as a Letter of Admonition pursuant to § 12-43-223(3)(d), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order.

PRACTICE RESTRICTION

10. Respondent agrees to immediately cease and permanently relinquish any and all portions of his practice related to FSAs commencing from the effective date of this Order. Such limitation shall have the same force and effect as a practice restriction ordered by the Board

PROBATION

11. Respondent's license to practice as an LPC in the State of Colorado will be on probation for five (5) years commencing from the effective date of this Order. During the probationary period, Respondent shall be bound by the terms and restrictions set forth below. If at any time Respondent is not in compliance with the terms and restrictions of probation, including having a practice monitor in place, Respondent shall cease the practice of professional counseling.

12. The period of probation is tolled during any time that Respondent is not practicing as an LPC in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing as an LPC in the State of Colorado in accordance with this Order.

13. Respondent shall report to the Board if he discontinues the practice of professional counseling, and Respondent shall notify the Board upon resuming the practice of professional counseling.

14. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as an LPC in the State of Colorado, is being monitored by a practice monitor, and is in full compliance with all terms of this Order.

15. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of probation.

PRACTICE MONITOR

16. During the term of probation, Respondent's practice will be monitored by a practice monitor.

17. Within 30 days of the date of this Order, Respondent shall submit, in writing, up to three proposed practice monitors for the Board's approval. Respondent shall include a Board-approved practice monitor application from each potential practice monitor, with attached curriculum vita or resume. The proposed practice monitor shall meet the following criteria:

- a. The practice monitor shall be an LPC currently practicing mental health in the State of Colorado with a minimum of five (5) years' experience;
- b. The practice monitor must not have been subject to any prior discipline with regard to his/her profession; and,
- c. The practice monitor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

18. Within 30 days of the date the Board approves Respondent's practice monitor, Respondent and the practice monitor shall enter into a written contract for practice monitoring.

19. The practice monitor shall provide a copy of the written contract to the Board as part of his/her first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, all investigative reports, read these documents, and understands and agrees to perform the duties and responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

20. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for at least one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once a month. During the practice monitoring sessions, Respondent and his practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to determine whether Respondent is practicing as an LPC in accordance with generally accepted standards of practice and with skill and safety for his clients. Further, the practice monitor is to ensure that Respondent's practice is in no way, shape, or form associated with ESAs.

21. The practice monitor shall submit a written report to the Board on the first day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the first day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Board, the practice monitor shall submit his/her

report by the first day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

22. If at any time the Board has questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Board's concerns. The Board will give the practice monitor 30 days' notice prior to requiring the practice monitor's attendance at the Board meeting.

23. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, and/or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, the Board will make the determination as to whether or not Respondent is able to practice with reasonable skill and safety, and whether emergency action should be taken pursuant to §§ 12-43-224(2)(c)(II) and 24-4-104, C.R.S.

24. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Board. If, in the Board's judgment, the practice monitor fails to perform the function specified by this Order, the Board may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Board within 30 days.

25. Either Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Board in accordance with this Order. If Respondent does not have another Board-approved practice monitor in place before the termination date, Respondent shall cease the practice of professional counseling until he has another Board-approved practice monitor in place.

CONTINUING EDUCATION

26. During the period of probation, Respondent must successfully complete at least 20 hours of Board-approved professional continuing education ("CE") courses each year in the areas of ethics, recordkeeping, assessments, diagnosis, and communication. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Board.

27. Respondent shall successfully complete the Professional/Problem Based Ethics ("ProBE") program (www.cpepdco.org/probe.htm) and shall register for the next available program in Colorado following the effective date of this Order. To successfully complete this program, Respondent must receive a passing evaluation or grade without any condition or qualification. Upon completion of the program, Respondent shall ensure that a certificate/letter of completion is provided to the Board. If Respondent fails to register for and successfully

complete the next available ProBE program in Colorado. Respondent must cease practice as an LPC and agrees to suspension of his license to practice as an LPC until he successfully passes the ProBE program.

28. These CE and program hours completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

29. Respondent will strictly observe the prohibitions set forth in § 12-43-222(1), C.R.S., and will ensure that he practices in accordance with the generally accepted standards of practice.

30. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services, unless such supervision or consultation is monitored in accordance with this Order.

31. All expenses incurred or associated with practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

32. During the pendency of this Order, Respondent agrees that he will provide permission to and allow his practice monitor to provide records and information obtained in the normal course of practice monitoring to the Board if the practice monitor determines that Respondent is not practicing professional counseling in accordance with generally accepted standards of practice and/or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care. As part of this Order, Respondent expressly waives his right to maintain confidentiality of records or information provided to the practice monitor in the normal course of practice monitoring if the practice monitor determines that he is not practicing professional counseling in accordance with generally accepted standards of practice and/or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care.

33. In the event Respondent relocates at any time during the probationary period, he shall notify the Board of the change of address within 30 days of the effective date of such change.

34. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

35. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

36. This Order shall constitute a Board Order for purposes of § 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§ 12-43-224, C.R.S.

37. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the MHPA and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

38. Respondent shall obey all municipal, state, and federal laws while this Order is in effect.

39. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

40. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

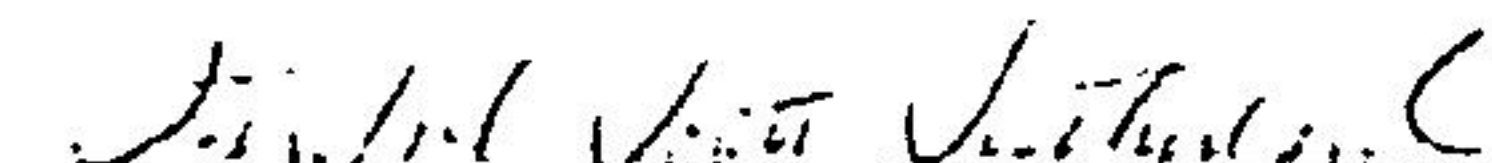
41. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

42. This Order shall be admissible as evidence at any hearing held before the Board.

43. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT


Stanford Sutherland, License No. LPC 4879

AGREED TO AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


Program Director

Effective this Date: 11/14/2014

APPROVED AS TO FORM:

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